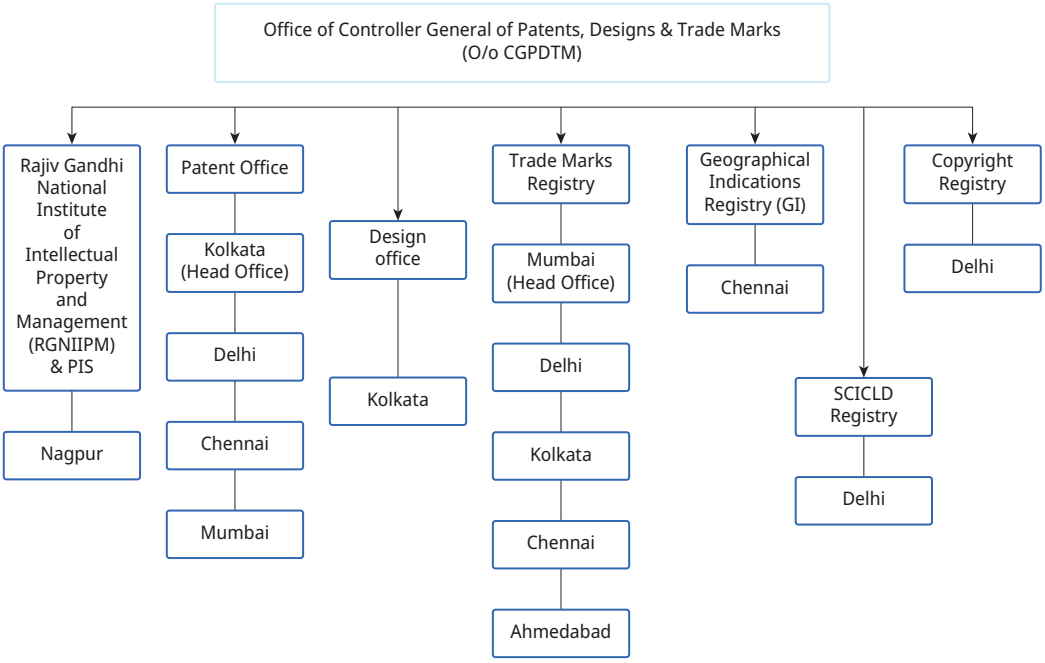
Figure 6.2 Organizational structure of the Office of the Controller General of Patents, Designs and Trade Marks



Source: Office of the Controller General of Patents, Designs and Trade Marks, *About Us*, https://ipindia.gov.in/pages/about-us

also located in Nagpur within the premises of the National Institute of Intellectual Property Management.

6.2.1.4 Cell for IPR Promotion and Management, constituted under the National Intellectual Property Rights Policy

The Cabinet of Ministers of the Central Government approved the National Intellectual Property Rights Policy on May 12, 2016.[67] This policy drew a future roadmap for IP rights in India and made several recommendations. Following one of the recommendations of the 2016 policy, a specialized professional body – the Cell for IPR Promotion and Management – was created under the aegis of the Department for Promotion of Industry and Internal Trade, and it has been instrumental in taking forward the objectives and visions of the policy. Since the adoption of the policy, the cell has worked toward changing the IP landscape of the country, which among other things, has included:

- IP rights awareness programs, which are conducted in over 200 academic institutions for the industry, police, customs and the judiciary;
- reaching out to rural areas – awareness programs are being conducted using satellite communication (EduSat). In one such program, 46 rural schools, with a combined total of 2,700 students, were reached. Over 300 schools and more than 12,000 students have been reached;
- more focus on developing e-content and disseminating content through online channels;
- including content on IP rights in the National Council of Educational Research and Training commerce curriculum. Work is ongoing to include IP rights in other academic streams; and
- conducting competitions in conjunction with industry for school and college students to develop the "innovative spirit." Some competitions have included the development of mobile applications, videos and online games.

As part of the awareness campaign, the Cell for IPR Promotion and Management also launched India's first IP mascot – "IP Nani" – in collaboration with the European Union Intellectual Property Office. IP Nani is an animated grandmother who sends out messages for the protection and

67 Department of Industrial Policy and Promotion, Government of India, *National Intellectual Property Rights Policy* (May 12, 2016), https://www.dpiit.gov.in/ministry/about-us/details/Title=National-Intellectual-Property-Rights-(IPR)-Policy-ITMwETMtQWa

enforcement of IP. There are also a series of animated videos on IP rights for school students.[68] These videos are available for viewing on platforms such as YouTube.[69]

6.2.1.5 The Department of Science and Technology – Patent Facilitation Programme

The Department of Science and Technology, under the Ministry of Science and Technology, has been implementing its Patent Facilitation Programme since 1995. It has established a Patent Facilitating Cell at the Technology, Information, Forecasting Assessment Council (an autonomous body of the department) and, subsequently, 26 patent information centers in various states. The patent facilitating cells and patent information centers create awareness of and extend assistance in protecting IP rights at the state level, including for patents, copyright, industrial designs, geographical indications and so on.

These patent information centers have also established IP cells in universities in their respective states to enlarge the network. Today, more than one hundred such cells have been created in different state universities. In addition, these centers are also mandated to provide assistance to inventors from government organizations and from central and state universities. They also render ongoing technical and financial assistance in filing, prosecuting and maintaining patents on behalf of the Government, research and development institutes, and academic institutions.[70] The mandate of the program is:

- providing patent information as a vital input to research and development;
- facilitating patent and IP rights facilitation for academic institutions and Government research and development institutions;
- providing IP rights policy input to the Government; and
- conducting IP rights training and awareness programs in the country.

6.2.1.6 Traditional Knowledge Digital Library

The Traditional Knowledge Digital Library (TKDL) is a pioneering initiative in India to protect Indian traditional medicinal knowledge and prevent its misappropriation. It was set up in 2001 as a collaboration between the Council of Scientific and Industrial Research and the Ministry of Ayush, Government of India. The Council of Scientific and Industrial Research is a contemporary research and development organization and a pioneer in India's IP movement.

The TKDL has overcome the language and format barrier by systematically and scientifically converting and structuring the available contents of ancient texts on Indian systems of medicine (i.e., Ayurveda, Siddha, Unani, Sowa Rigpa and Yoga) into five international languages – English, Japanese, French, German and Spanish – with the help of information technology tools and an innovative classification system called the Traditional Knowledge Resource Classification. More than 360,000 formulations and practices have been transcribed into the TKDL database.

The classification has also structured and classified the Indian traditional medicine system into several thousand subgroups for Ayurveda, Unani, Siddha and Yoga. The Traditional Knowledge Resource Classification has enabled the incorporation of about 200 subgroups under International Patent Classification A61K 36/00, more than the few subgroups earlier available on medicinal plants under A61K 35/00, thus enhancing the quality of search and examination of prior art for patent applications in the area of traditional knowledge.

The TKDL has also established international specifications and standards for setting up traditional knowledge databases based on TKDL specifications. These standards were adopted in 2003 by the committee in the fifth session of the World Intellectual Property Organization's Intergovernmental Committee on Intellectual Property and Genetic Resources, Traditional Knowledge and Expression of Folklore.

Currently, the TKDL is based on open-source and open-domain texts of Indian systems of medicine. The TKDL acts as a bridge between these books (prior art) and patent examiners. Access to the TKDL is available to 13 patent offices under the TKDL Access (Non-disclosure)

68 Department for Promotion of Industry and Internal Trade, *IP Nani*, https://dpiit.gov.in/ip-nani
69 E.g., the first episode of the series can be found at www.youtube.com/watch?v=5rEpNpO0iqU
70 Department of Science and Technology, Government of India, *Compendium on IP Activities under Patent Facilitation Programme 2016–2019*, http://dst.gov.in/sites/default/files/PIC_Compendium_16-19_0.pdf

Agreement,[71] which has inbuilt safeguards on nondisclosure to protect India's interest against any possible misuse.

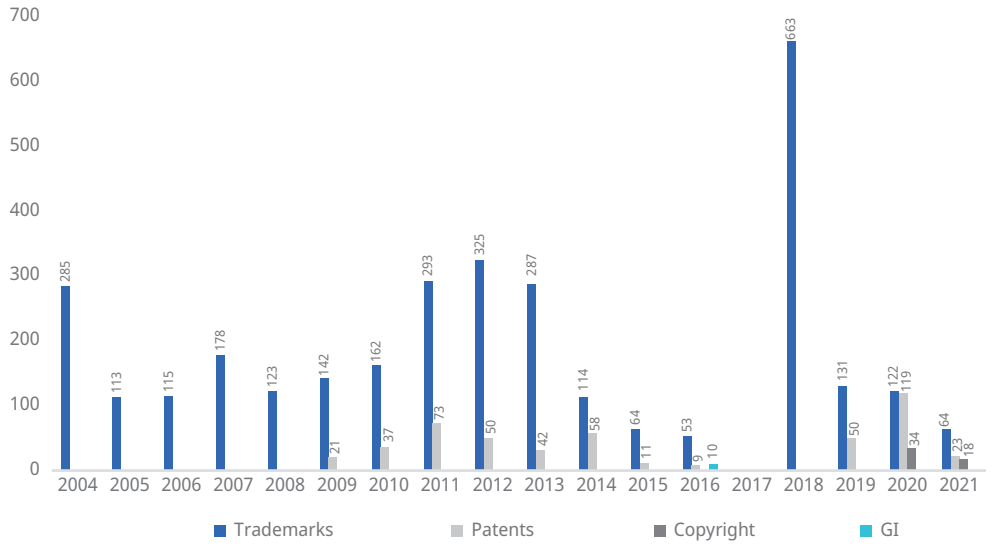
The TKDL is proving to be an effective deterrent against biopiracy and has been recognized internationally as a unique effort. It has set a benchmark in traditional-knowledge protection around the world, particularly in traditional-knowledge-rich countries, by demonstrating the advantages of proactive action and the power of strong deterrence. The key here is preventing the grant of incorrect patents conferring monopolies on aspects of traditional knowledge, by ensuring access to prior art relating to traditional knowledge for patent examiners without restricting the use of that traditional knowledge.

6.2.2 Administrative review proceedings

6.2.2.1 Intellectual Property Appellate Board

Under the Patents Act, 1970, the appellate jurisdiction to hear appeals and the original jurisdiction to revoke patents was conferred on the High Courts in India. Both these jurisdictions were redirected to the IPAB as a specialized IP tribunal in 2002 and 2005. This was to enable the speedy disposal of such matters (see Figure 6.3 regarding the disposal of cases by the IPAB).[72] However, in 2021, the Central Government was of the view that this stated objective of speedy disposal was not being achieved and abolished the IPAB, redirecting such matters back to the High Courts.[73]

Figure 6.3 Disposal of cases at the Intellectual Property Appellate Board, up to February 13, 2021



Note: GI = geographical indication.
Source: Jacob Schindler, *Top Judge's Blueprint for the Future in IP Litigation in India*, IAM Media (May 5, 2021), www.iam-media.com/law-policy/specialised-ip-bench-in-india-long-overdue-says-delhi-high-court-veteran

6.2.2.2 Pre-grant opposition

The scheme of pre-grant oppositions was streamlined by the Patents (Amendment) Act, 2005. Prior to this, a pre-grant opposition could only be filed by a "person interested." The amendment now allows *any* person to file a pre-grant opposition. It can be filed when an application for a patent has been published, but the patent has not yet been granted under Section 25(1) of the

71 These patent offices are the European Patent Office, United State Patent and Trademark Office, Japan Patent Office, United Kingdom Intellectual Property Office, Canadian Intellectual Property Office, German Patent and Trade Mark Office, Intellectual Property Australia, India Office of the Controller General of Patents, Designs and Trade Marks, National Institute of Industrial Property of Chile, Intellectual Property Corporation of Malaysia, Russian Federal Service for Intellectual Property, Peru National Institute for the Defense of Competition and Protection of Intellectual Property and Spanish Patent and Trademark Office.

72 See Discussion on the Trade Marks Bill, 1999, *Lok Sabha Debates*, Session No. 2, Dec. 22, 1999, 454, at 455 ("[The Trade Marks Bill, 1999] seeks to provide for an Appellate Board for the speedy disposal of appeals and rectification of application which presently before the High Court").

73 The Tribunals Reforms (Rationalisation and Conditions of Service) Ordinance, 2021.

Patents Act, 1970. There is no time limit within which a pre-grant opposition must be filed after publication.

6.2.2.2.1 Procedure of pre-grant opposition

The pre-grant opposition procedure broadly follows these steps:

1. The pre-grant opposition is filed, along with evidence, if any.[74]
2. The Controller forms a *prima facie* opinion on the pre-grant opposition filed. They decide either to issue notice of the opposition to the patent applicant or to reject the opposition *prima facie* without issuing notice to the patent applicant.[75]
3. If notice has been issued, the patent applicant may reply (along with evidence, if any) within three months from the date of the notice by the Controller.[76]
4. The Controller may hold a "hearing." This is followed by a decision, ordinarily within one month.[77] The Controller is required to either reject or grant the patent.

6.2.2.2.2 Grounds on which pre-grant opposition can be filed

Section 25(1) of the Patents Act, 1970, provides a list of grounds on which a pre-grant opposition can be filed. The list is exhaustive:

> (a) that the applicant for the patent or the person under or through whom he claims, *wrongfully* [emphasis added] obtained the invention or any part thereof from him or from a person under or through whom he claims;
> (b) that the invention so far as claimed in any claim of the complete specification has been published before the priority date of the claim –
> (i) in any specification filed in pursuance of an application for a patent made in India on or after the 1st day of January, 1912; or
> (ii) in India or elsewhere, in any other document:
> Provided that the ground specified in sub-clause (ii) shall not be available where such publication does not constitute an anticipation of the invention by virtue of sub-section (2) or subsection (3) of section 29;
> (c) that the invention so far as claimed in any claim of the complete specification is claimed in a claim of a complete specification published on or after priority date of the applicant's claim and filed in pursuance of an application for a patent in India, being a claim of which the priority date is earlier than that of the applicant's claim;
> (d) that the invention so far as claimed in any claim of the complete specification was publicly known or publicly used in India before the priority date of that claim.
> ***Explanation.* –** For the purposes of this clause, an invention relating to a process for which a patent is claimed shall be deemed to have been publicly known or publicly used in India before the priority date of the claim if a product made by that process had already been imported into India before that date except where such importation has been for the purpose of reasonable trial or experiment only;
> (e) that the invention so far as claimed in any claim of the complete specification is obvious and clearly does not involve any inventive step, having regard to the matter published as mentioned in clause (b) or having regard to what was used in India before the priority date of the applicant's claim;
> (f) that the subject of any claim of the complete specification is not an invention within the meaning of this Act, or is not patentable under this Act;
> (g) that the complete specification does not sufficiently and clearly describe the invention or the method by which it is to be performed;
> (h) that the applicant has failed to disclose to the Controller the information required by section 8 or has furnished the information which in any material particular was false to his knowledge;
> (i) that in the case of a convention application, the application was not made within twelve months from the date of the first application for protection for the invention made in a convention country by the applicant or a person from whom he derives title;

74 Patents Rules, 2003, r. 55(1).
75 Patents Rules, 2003, r. 55(3).
76 Patents Rules, 2003, r. 55(4).
77 Patents Rules, 2003, r. 55(5).

(j) that the complete specification does not disclose or wrongly mentions the source or geographical origin of biological material used for the invention;
(k) that the invention so far as claimed in any claim of the complete specification is anticipated having regard to the knowledge, oral or otherwise, available within any local or indigenous community in India or elsewhere, but on no other ground, and the Controller shall, if requested by such person for being heard, hear him and dispose of such representation in such manner and within such period as may be prescribed.

6.2.2.2.3 Locus standi to file pre-grant oppositions

Under Section 25(1) of the Patents Act, 1970, "any" person can file a pre-grant opposition. A pre-grant opposition is deemed to be an extension of the examination by the Patent Office, and, thus, the standing requirement is diluted. Nevertheless, precedents demonstrate that courts come down heavily against fake pre-grant oppositions or those filed by impostors solely to harass or to delay the grant rather than with any genuine intent to remove invalid patents.[78]

6.2.2.3 Post-grant opposition

A post-grant opposition can be filed under Section 25(2) of the Patents Act, 1970, by a "person interested" after the grant of patent but within one year from the date of publication of the grant of a patent.

6.2.2.3.1 Procedure in filing post-grant opposition

The post-grant opposition procedure broadly follows these steps:

1. A post-grant opposition is filed, along with evidence, if any.[79] A copy must be supplied to the patentee.[80]
2. The Controller constitutes an opposition board of three examiners (other than the examiner who examined the patent).[81]
3. The patent applicant may reply to the opposition, providing evidence, if any, within two months.[82] If no reply is filed, the patent is deemed to be abandoned.[83] The Controller also notifies the patentee.[84] The time for this reply begins from the date the patent applicant is served with the opposition by the opponent.
4. The opponent then has one month to respond to the patent applicant's reply statement.[85]
5. The opposition board prepares a report with reasons on each ground taken in the notice of opposition. The report contains the board's joint recommendation and is made within three months of the date on which the documents were forwarded to the board.[86]
6. The Controller schedules a hearing. This is followed by a decision.[87] At the hearing, the Controller may require members of the opposition board to be present. If either of the parties wishes to be heard, this is permitted on payment of a fee and after notice. If no notice to attend the hearing is received from either party, the Controller can decide the opposition without a hearing. The order must be reasoned. The recommendation of the opposition board is not binding, though it is of persuasive value. Thus, the board's recommendation should not be lightly ignored without stated reasons.

A party can also file new documents before the scheduling of the hearing, provided prior leave of the Controller is obtained.[88] Further, a party can rely upon "any publication" that may not have been filed earlier, provided that there has been five days' notice and that the details of the publication are given to the other party.[89]

78 *Pfizer Products Inc.* v. *Controller of Patents and Designs*, 2020 SCC Online IPAB 19; *Dhaval Diyora* v. *Union of India*, 2020 SCC Online Bom. 2550; *Anaghaya Million Pharma LLP* v. *Nippon Soda Co. Ltd*, MANU/IC/0074/2020.
79 Patents Rules, 2003, r. 55A.
80 Patents Rules, 2003 r. 57.
81 Patents Act, 1970, §25(3)(b); Patents Rules, 2003, r. 56(1)–(3).
82 Patents Rules, 2003, r. 58(1).
83 Patents Rules, 2003, r. 58(2).
84 Patents Act, 1970, §25(3)(a).
85 Patents Rules, 2003, r. 59.
86 Patents Rules, 2003, r. 56(4).
87 Patents Rules, 2003, r. 55(5).
88 Patents Rules, 2003, r. 60.
89 Patents Rules, 2003, r. 62(4).

In *Cipla Ltd* v. *Union of India*, the Supreme Court held that it would be mandatory to issue a copy of the recommendation of the Opposition Board to the parties, so that the principles of natural justice are duly adhered to.[90]

6.2.2.3.2 Grounds on which post-grant opposition can be filed

The grounds for post-grant opposition are the same as those for pre-grant opposition. The grounds are exhaustive.

6.2.2.3.3 Locus standi to file post-grant oppositions

Section 2(1)(t) of the Patents Act, 1970, defines "person interested" in an inclusive manner to include a person engaged in or promoting research in the same field as that to which the invention relates. Precedents have interpreted the term "person interested" broadly to cover any person who has a direct, present and tangible interest in the patent and those whose interests are adversely affected because of the patent.[91] The term has been construed to include even nongovernmental organizations that have an interest or stake in the existence or invalidity of the patent – commercial interest is not a necessary condition.[92]

6.2.2.3.4 Appeals from pre-grant and post-grant oppositions

An appeal lies to the jurisdictionally competent High Court from an order of rejection of a patent application in a pre-grant opposition and from an order revoking or maintaining the grant of patent in a post-grant opposition. No appeal lies from the grant of a patent in a pre-grant opposition.[93]

6.3 Judicial institutions

6.3.1 Court system in India

6.3.1.1 Hierarchy of courts

There is a common court structure across India, with the Supreme Court of India at its apex. The Supreme Court of India is a court established under the Constitution of India. It is located in New Delhi and is the final appellate authority in the Indian judicial system. The Supreme Court has appellate, constitutional, review and special jurisdictions. It also has limited original jurisdiction for constitutional matters, though not for IP matters.

Below the Supreme Court of India are the various High Courts of India. The Supreme Court exercises appellate jurisdiction over High Court decisions. However, all High Courts and the Supreme Court of India occupy equal constitutional status. While, typically, each federal Indian state has a designated High Court, some states share a High Court. There are 24 High Courts in India.

All High Courts have appellate, constitutional and review jurisdiction. A few High Courts also have "original" jurisdiction – civil cases, including IP suits, can be directly filed in these High Courts, subject to a certain minimum pecuniary value that may vary from one state to another. Such High Courts are those of Delhi, Bombay (Mumbai), Madras (Chennai), Calcutta (Kolkata) and Himachal Pradesh (Shimla). All appeals from a High Court lie to the Supreme Court, though some High Courts also possess an intracourt appeal system from a single judge of the High Court to a bench comprising two judges (i.e., division bench).[94]

Each federal Indian state is typically divided into several districts. Below the High Courts of each state are the district and sessions courts for each such district. The district court is for civil matters, and the sessions court is for criminal matters. Below these courts are the courts of sub-judges for civil matters and the magistrates' courts for criminal matters.

90 (2012) 13 SCC 429, at 432. The Court held: "considering the fact that the Report of the Opposition Board can be crucial in the decision making process, while passing order by the Controller under Section 25(4), principles of natural justice must be read into those provisions. Copy of the Report/recommendation of Opposition Board, therefore, should be made available to the parties before the Controller passes orders under Section 25(4) of the Act."

91 *Aloys Wobben* v. *Enercon*, 2010 SCC Online Mad. 4668.

92 *Sankalp Rehabilitation Trust* v. *F Hoffmann La-Roche*, 2012 SCC Online IPAB 167.

93 *UCB Farchim* v. *Cipla Ltd,* 2010 SCC Online Del. 523.

94 Such High Courts are those of Allahabad, Chennai, Mumbai, Calcutta, Punjab and Haryana, Delhi, Madhya Pradesh, Patna, and Jammu and Kashmir.

6.3.1.2 Commercial courts

The Commercial Courts Act, 2015, was enacted to provide fast-track courts for the resolution of certain commercial disputes, which includes IP rights disputes. All commercial disputes beyond a certain minimum specified value must be filed under the fast-track system of the Commercial Courts Act, 2015. Each district now has designated commercial courts for such disputes. Each High Court having original jurisdiction also has a Commercial division to hear such fast-tracked commercial disputes. Further, every High Court has a Commercial Appellate division to hear appeals for fast-tracked commercial disputes.

6.3.1.3 Appointment and tenure of judges

Judges of the High Courts and the Supreme Court of India are selected by a committee (called "the Collegium") consisting of the three or five seniormost judges of the Supreme Court and headed by the Chief Justice. The executive can give its views on specific candidates, though the Collegium has the final say. A High Court judge could be from the district judiciary[95] (or a practicing advocate with a minimum of 10 years' practice).

Appointments to the subordinate judiciary (i.e., lower than the district court: the Provincial Civil Service–Judicial) are made by either the state public service commissions or the High Court concerned. The selection process involves written tests and an interview. Selected candidates are appointed as judges in the subordinate judiciary as sub-judges. High Courts also conduct the selection process for the Higher Judicial Service's appointment of district judges. Candidates for the Higher Judicial Service are sub-judges and advocates with a minimum of seven years' practice.

6.3.2 Judicial education on intellectual property

The National Judicial Academy (NJA) is a training institute located in Bhopal, Madhya Pradesh, established and fully funded by the Government of India. The NJA is an independent society established in 1993 under the Societies Registration Act, 1860. The Honorable Chief Justice of India is the Chairman of the General Body of the NJA and the Chairman of the Governing Council, the Executive Committee and the Academic Council of the NJA.

The NJA's academic programs are guided by the National Judicial Education Strategy, launched in 2007. Under this strategy, the NJA has established a national system for judicial education. The NJA conducts a vibrant training program for judges at all levels throughout the year. The program is addressed by speakers who may be lawyers or people with specialized knowledge, including economists and foreign experts.

As a joint initiative of the World Intellectual Property Organization and the NJA, seminars, talks and so on are organized by the NJA for the benefit of lawyers, academics and students.

6.4 Challenges to patents

Under Section 13(4) of the Patents Act, 1970, the grant of a patent does not guarantee its validity.[96] The underlying principle is that allowing an invalid patent to continue on the register is against the public interest, so every opportunity is provided to remove invalid patents. There are various levels of challenges provided in the Act against a patent application or a granted patent. Such challenges can be made either prior to or after the grant:

- Pre-grant opposition under Section 25(1);
- Post-grant opposition under Section 25(2) before the Patent Office, introduced in 2005;
- revocation under Section 64(1) before the High Court;[97] and
- a counterclaim seeking revocation in a suit for infringement under Section 64(1), in which case the infringement suit and the counterclaim are both transferred to the relevant High Court.[98]

Other challenges to patents or the exercisable rights are compulsory licenses and government use (under Sections 84, 92, 102 and others) and revocation (under Section 66).

95 India Constitution, art. 217(2)(a).
96 Patents Act, 1970, §13(4); see also *Biswanath Prasad Radhey Shyam* v. *Hindustan Metal Industries*, AIR 1982 SC 1444.
97 Until 2021, this was the IPAB, Following the Tribunals Reforms (Rationalisation and Conditions of Service) Ordinance, 2021, this jurisdiction is vested with the High Court.
98 Patents Act, 1970, §104 proviso; see Section 6.5.4 of this chapter.

There has been significant discontent – especially after the 2002 and 2005 amendments – about the multitude of challenge avenues. These provisions for patent challenges may appear to encourage abuse by patent opponents and result in patent grants being held up or delayed almost indefinitely. These apprehensions have been assuaged to a large extent by judicial precedents, which have streamlined the filing of oppositions and dealt with challenges to orders passed in oppositions. In *UCB Farchim* v. *Cipla Ltd*,[99] the Delhi High Court confirmed that, once a pre-grant opposition is dismissed and the patent is granted, the order granting the patent cannot be challenged by way of an appeal. The only remedy available is to file a post-grant opposition or a revocation. In *Snehlata C Gupte* v. *Union of India*,[100] the practice of filing serial oppositions to hold up the grant of a patent was stopped by the Delhi High Court. The court issued a series of directions preventing delays in patent grants. In *Aloys Wobben* v. *Yogesh Mehra*,[101] the Supreme Court categorically held that one person cannot pursue both a revocation application and a counterclaim seeking revocation. These and other decisions have ensured that duplicity and parallel proceedings are avoided to the extent possible.

6.5 Patent infringement

The ability to enforce patents is a crucial right for any patentee. Chapter XVIII of the Patents Act, 1970, addresses infringement, forums, remedies, defenses and counterclaims.

6.5.1 Claim construction

Claim construction forms a critical component of patent enforcement and invalidity challenges. Claim construction is a prerequisite for infringement analysis because the claims determine the scope of protection afforded to the patentee. Similarly, only after claims are construed to determine the invention can invalidity analysis proceed.

6.5.1.1 Procedure

Unlike the mechanism of a "*Markman*" hearing in the U.S., there is no separate procedural step for claim construction. Instead, claim construction is handled as part of the trial. Any disputes concerning the construction of claims will be framed as issues during the case management hearing. In the High Court of Delhi Rules Governing Patent Suits, 2022, it has been recommended that parties file a claim-construction brief before the case management hearing to enable courts and parties to assess whether there are any disputes in relation to the claims.[102]

6.5.1.2 Principles

In the context of India's predecessor legislation, the Supreme Court of India has held that claims must be given an effective meaning and that the specification and claims must be examined and construed together.[103] The Supreme Court followed English precedents when coming to this conclusion.

Under the Patents Act, 1970, the Delhi High Court, in *F Hoffmann-La Roche Ltd* v. *Cipla Ltd*,[104] held that one must undertake a "purposive construction" of the claims. The Delhi High Court drew inspiration from the concept of purposive construction that was formulated in the seminal English judgment *Catnic Components Ltd* v. *Hill and Smith Ltd*[105] This principle is captured in the following two dicta in the *Catnic Components* case:

> whether persons with practical knowledge and experience of the kind of work in which the invention was intended to be used, would understand that strict compliance with a particular descriptive word or phrase appearing in a claim was intended by the patentee to be an essential requirement of the invention so that any variant would fall outside the monopoly claimed, even though it could have no material effect upon the way the invention worked.

99 See Patents Act, 1970, §13(4); see also *Biswanath Prasad Radhey Shyam* v. *Hindustan Metal Industries*, AIR 1982 SC 1444.
100 2012 SCC Online Del. 2259.
101 *Aloys Wobben* v. *Yogesh Mehra*, (2014) 15 SCC 360.
102 High Court of Delhi Rules Governing Patent Suits, 2022, r. 7(v) r/w, r. 2(c).
103 *Bishwanath Prasad* v. *Hindustan Metal Industries*, (1979) 2 SCC 511. But see *Farbwerke Hoechst* v. *Unichem Laboratories*, AIR 1969 Bom. 255 (holding that specification must be referred to only in the case of ambiguity. However, the Supreme Court's judgment in *Bishwanath Prasad* v. *Hindustan Metal Industries* effectively overrules this judgment).
104 MIPR 2016 (1) 1.
105 (1982) RPC 183.